



**HIGH COURT OF JUDICATURE AT ALLAHABAD**

**WRIT - C No. - 45953 of 2025**

Executive Engineer, Paschimanchal Vidyut Vitran  
Nigam Ltd.

.....Petitioner(s)

Versus

Riyasat Ali And 2 Others

.....Respondent(s)

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|---------------------------|---|-------------------|
| Counsel for Petitioner(s) | : | Abhay Nitin Singh |
| Counsel for Respondent(s) | : | C.S.C.            |

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**Court No. - 36**

**HON'BLE ARUN KUMAR, J.**

1. Heard Sri Mata Prasad, holding brief of Sri Abhay Nitin Singh, learned counsel for the petitioner and learned Standing Counsel for the respondent nos.2 and 3.

2. The present writ petition has been filed challenging the award of the Permanent Lok Adalat, Rampur, dated 10.7.2025, passed in PLA Suit No.57 of 2022.

3. It is contended by learned counsel for the petitioner that the Permanent Lok Adalat does not require to adjudicate a dispute, unless attempts have been made for conciliation and settlement. However, in this case, after exchange of pleadings, the Permanent Lok Adalat proceeded to frame the issues and decided the dispute without resorting to conciliation proceedings. In support of his contention, learned counsel for the petitioner has relied upon a judgment of the Hon'ble Supreme Court in the case of Canara Bank Vs. G S Jayarama, reported in 2022 LiveLaw (SC) 499. Relevant paragraphs 26 and 27 are reproduced as under:-

*"26. The appellant's argument, however, is that if the opposite party does not appear before the Permanent Lok Adalat, it can dispense with the conciliation proceedings and straightaway adjudicate the dispute under Section 22-C(8). We are unable to accept this submission. Even if the opposite party does not appear, the Permanent Lok Adalat is still bound to follow the step-by-step procedure laid down by Section 22-C. Under Section 22-C(3), it would require the party before it to file their*

*submissions and documents, and make the best efforts to communicate them to the opposite party for their response. If it is satisfied that no response is forthcoming from the absent opposite party, the Permanent Lok Adalat shall still attempt to settle the dispute through settlement under Section 22-C(4). It is important to remember that Section 22-C(5) imposes a duty upon the Permanent Lok Adalat to be independent and impartial in attempting to amicably settle the dispute, while Section 22-C(6) imposes a duty upon the party present before the Permanent Lok Adalat to cooperate in good faith and assist the Permanent Lok Adalat. Thereafter, the Permanent Lok Adalat, based on the materials before it, shall propose terms of settlement and communicate them to both parties, regardless of whether they participated in the proceedings. If the party present before the Permanent Lok Adalat does not agree or if the absent party does not respond in a sufficient period of time, only then can the Permanent Lok Adalat adjudicate the dispute on its merits under Section 22-C(8). Keeping in mind the principles enshrined in Section 22-D, the Permanent Lok Adalat shall once again notify the absent party of its decision to adjudicate the dispute on its merits, in case it wishes to join the proceedings at that stage.*

*27 Section 22-C(8) is amply clear that it only comes into effect once an agreement under Section 22-C(7) has failed. The corollary of this is that the proposed terms of settlement under Section 22-C(7), and the conciliation proceedings preceding it, are mandatory. If Permanent Lok Adalats are allowed to bypass this step just because a party is absent, it would be tantamount to deciding disputes on their merit ex parte and issuing awards which will be final, binding and will be deemed to be decrees of civil courts. This was simply not the intention of the Parliament when it introduced the LSA Amendment Act. Its main goal was still the conciliation and settlement of disputes in relation to public utilities, with a decision on merits always being the last resort. Therefore, we hold that conciliation proceedings under Section 22-C of the LSA Act are mandatory in nature."*

4. The perusal of the award of the Permanent Lok Adalat shows that no conciliation proceeding under Section 22-C (7) had been undertaken by the Permanent Lok Adalat before proceeding to adjudicate the dispute on

merits. Moreover, the claimant-respondent no.1 had disputed the genuineness of the bill raised by the petitioner, against which he had a remedy under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, which was not resorted to before approaching the Permanent Lok Adalat.

5. Matter requires consideration.

6. Issue notice to respondent no.1 returnable at an early date. Steps be taken within a week by registered/speed post.

7. All the respondents may file counter affidavit within six weeks. Rejoinder affidavit, if any, may be filed within two weeks, thereafter.

8. List thereafter.

**(Arun Kumar,J.)**

**February 16, 2026**

Anil